

TAB 1



Board of Education Report

[Return to Order of Business](#)

File #: Rep-247-22/23, Version: 1

Define and Approve the 2023-2024 Education Code Section 47614 (Proposition 39) Facilities Renovation Effort and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

May 23, 2023

Facilities Services Division and Office of the Chief Strategy Officer

Action Proposed:

Define and approve 2023-2024 Education Code Section 47614 (Proposition 39) facilities renovations at up to 67 school sites, as listed on Attachments A, B, and C, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The not-to-exceed cumulative budget for this renovation effort is \$15,217,614.

Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed projects, including budget modifications and the purchase of equipment and materials.

Background:

With the passage of Proposition 39 in November 2000, California Education Code Section 47614 was amended with the intent that public school facilities should be shared fairly among all public school students, including those in charter schools. Proposition 39 requires that school districts make available, to all charter schools operating in their school district that submitted a legally sufficient facilities request, facilities in conditions reasonably equivalent to those in which the charter students would be accommodated if they were attending other public schools of the district. Facilities provided shall be contiguous, furnished and equipped, and shall remain the property of the school district.

Each of the charter schools identified on Attachments A and B submitted a legally sufficient facilities request to the District and may occupy District school sites for the 2023-2024 school year pursuant to Proposition 39. In accordance with the requirements and timelines of Proposition 39, preliminary proposals are issued on February 1st and final offers are issued on April 1st each year.

With approval of this proposed action, Bond Program funds earmarked for charter school facilities projects will be made available to immediately execute renovations at multiple District school sites in order to fulfill the District's responsibilities imposed by Proposition 39. These facilities improvements will increase the likelihood that the District school and charter school will successfully and safely co-locate on a single school site with minimal interference and disruption to their respective educational programs. The scope of work to be undertaken at each school site and its associated schedule and budget may vary depending on site conditions and needs.

The 2023-2024 Proposition 39 Facilities Renovation Effort includes various facilities renovations, reconfigurations, technology, furniture and equipment, and communication/safety systems purchases and upgrades, such as:

Low Voltage Systems: Local area data networks, phone and public address systems, and independent intrusion alarms. Modifications to reconfigure facilities for District-operated programs or another charter school where an existing charter school occupant will relocate to another District school site or private/third party site, or cease operations.

Site Renovations and Reconfigurations: Miscellaneous renovations and reconfigurations to classroom space identified for charter school use. Improvements to school facilities where charter schools currently occupy space but will not continue occupancy in the 2023-2024 school year will be reconfigured, including connecting low-voltage systems for District-operated or other programs, as appropriate.

Technology Equipment: Repurpose and purchase computers, laptop carts and/or end user peripherals.

Furniture & Equipment: Repurpose existing furniture and equipment, and plan, purchase and deliver new furniture and equipment (e.g., desks, chairs, bookshelves, waste bins, emergency radio systems, but excluding technology equipment).

Re-Keying: Charter school spaces only.

Office of Environmental Health and Safety: California Environmental Quality Act (CEQA) analysis, including traffic studies and associated regulatory obligations.

The space allocated to each charter school by the District must be furnished, equipped and available for occupancy by the charter school for a period of at least 10 working days prior to the first day of instruction of the charter school. For good cause, this period is subject to reduction by the District, but to no fewer than seven working days. As such, work will commence immediately after Board approval to ensure adequate facilities are allocated in a timely manner to each charter school.

Attachment B lists all existing co-location sites on which charter schools will continue to occupy the same space in 2023-2024 as they currently occupy in the 2022-2023 school year (i.e., “No Change”). Although there is typically no new scope required for these sites, the District may need to perform some renovation work in order to continue to ensure the conditions of the facilities occupied by a charter school remain reasonably equivalent. The potential scope of work for each “No Change” site may vary depending on site conditions and needs. If any additional work is required, District staff will follow the Budget Modification Request process for the corresponding site referenced in Attachment B, in accordance with District policy.

Attachment C lists co-location sites on which spaces are presently configured for charter schools that will not continue occupancy in the 2023-2024 school year. Sites vacated will be returned to previous conditions with all low voltage systems reconnected to District-operated programs, as appropriate.

Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens’ Oversight Committee (BOC) at its meeting on April 27, 2023. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified’s ability to successfully implement the Facilities SEP.

Expected Outcomes:

Approval of the proposed action will allow the execution of the 2023-2024 Proposition 39 facilities renovations at up to 67 District school sites.

Renovations at the 60 District school sites in Attachment A are for charter schools that are expected to serve a collective total in-district classroom average daily attendance of approximately 13,200 students in approximately 879 classrooms, special education spaces, and administrative offices.

Of the three District school sites in Attachment B, charter schools are expected to continue serving a collective total in-district classroom average daily attendance of approximately 532 students in approximately 34 classrooms, special education spaces, and administrative offices.

Collectively, charter schools are expected to enroll approximately 13,700 students in approximately 913 classrooms and special education spaces, and administrative offices.

Board Options and Consequences:

A “yes” vote will result in the Facilities SEP being amended and the District utilizing Bond Program funds earmarked for charter school facilities projects to complete facilities renovations at District school sites as identified in Attachments A, B, and C.

A “no” vote will result in the District being obligated to use General Funds to complete the facilities renovation projects identified in Attachments A, B, and C due to the obligation to allocate the use of reasonably equivalent, contiguous, furnished and equipped facilities to the charter schools pursuant to Proposition 39 for the 2023-2024 school year.

Policy Implications:

This action does not change District policies.

Budget Impact:

The not-to-exceed cumulative budget for this renovation effort is \$15,217,614. The renovation effort is funded with Bond Program funds earmarked specifically for charter school facilities upgrades and expansions. Should a charter school not accept the District’s offer of space, the school site may be allocated to another charter school, or renovations at that individual school site will not be undertaken and the associated funding will not be expended.

The not-to-exceed budget is based on the best information presently available to the District. However, due to the current economic climate, these anticipated costs may require adjustments due a variety of factors, such as the availability of the District’s current workforce, and delays and increased costs of manufacturing, sales, and distribution of materials and supplies. Individual project budgets will be reviewed regularly and will be adjusted accordingly to enable the successful completion of each project.

Student Impact:

Pursuant to Proposition 39, public school facilities should be shared fairly among all public school pupils, including those in charter schools. Through this proposed action, the Board of Education authorizes staff to fulfill this mandate.

Equity Impact:

Proposition 39 is a state law passed by California voters in 2000, which requires school districts to make facilities (including both classroom and non-classroom spaces) available to public charter schools serving students who reside in the district.

Issues and Analysis:

Proposition 39 requires school districts to make available, to all charter schools operating in their school district that submit a legally sufficient facilities request, facilities in conditions reasonably equivalent to those in which the charter students would be accommodated if they were attending other public schools in the district. Facilities provided shall be contiguous, furnished, equipped and available for occupancy by the charter school for a period of at least 10 working days prior to the first day of instruction of the charter school.

To fulfill this mandate, the District faces numerous challenges, including:

- Extremely brief amount of time between a charter school's May 1st acceptance of the District's final offer and the deadline for the District to provide occupancy at least 10 working days before each charter school's first day of instruction.
- Due to the current economic climate, a variety of factors, such as availability of the District's current workforce, and delays and increased costs in manufacturing, sales, and distribution of materials and supplies.
- Very narrow window of time to assess the type, amount and condition of the District's existing technology, furniture and equipment, match it to the charter schools' grade levels and plan, repurpose/purchase, receive and deliver additional/supplemental technology, furniture and equipment.
- Varying conditions of allocated spaces on different school sites, including amount and type of furniture and equipment that may change between original site survey and actual occupancy.
- Limited sources of reasonably equivalent existing furniture and equipment, and lead time required to research, locate, validate, repair and repurpose it.

The District has implemented numerous successful strategies to reduce project costs and timelines, including:

- Establishing procedures to streamline the process from pre-planning to post-occupancy.
- Re-purposing existing furniture and equipment recovered from charter schools that vacated District facilities or have expiring furniture and equipment leases.
- Creating templates for reasonably equivalent furniture and equipment for specific grade levels in order to improve planning, repurposing/purchasing and delivery.
- Standardizing manufactured item selections to speed purchase, production and delivery.

Attachments:

Attachment A - 2023-24 Proposition 39 Facilities Renovations

Attachment B - 2023-24 Proposition 39 Facilities Renovations "No Change" Projects

Attachment C - 2023-24 Proposition 39 Facilities Renovations "Vacate" Projects

Attachment D - BOC Resolution

File #: Rep-247-22/23, **Version:** 1

Informatives:

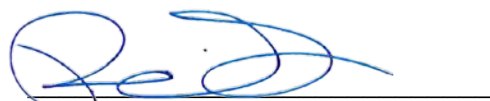
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Submitted:

04/17/2023

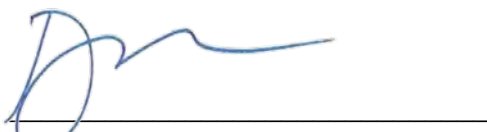
RESPECTFULLY SUBMITTED,

APPROVED BY:


ALBERTO M. CARVALHO
Superintendent
PEDRO SALCIDO
Deputy Superintendent, Business Services and Operations

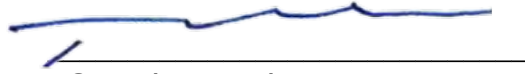
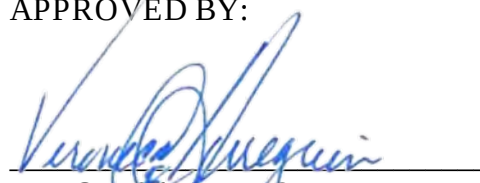
REVIEWED BY:

APPROVED BY:

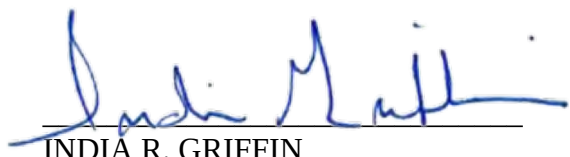

DEVORA NAVERA REED
General Counsel
MARK HOVATTER
Chief Facilities Executive
Facilities Services Division☒ Approved as to form.

REVIEWED BY:

APPROVED BY:


TONY ATIENZA
Director, Budget Services and Financial Planning
VERONICA ARREGUIN
Chief Strategy Officer☒ Approved as to budget impact statement.

PRESENTED BY:


INDIA R. GRIFFIN
Director of Facilities Maintenance and Operations
Facilities Services Division

Attachment A
2023-24 Proposition 39 Facilities Renovations

16

	Board District	Region	District Campus	Charter School	Type (G=Growth; N=New; R=Reconfiguration; U=Upgrade)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget	Construction Start	Substantial Completion
1	1	S	24th St. ES	Crown Preparatory Academy	G	1	18	3	0	2	1	2	23	\$ 207,000	Q2-2023	Q3-2023
2	1	S	42nd St. ES	ISANA Nascent Academy	R	1	12	2	0	0	0	1	14	\$ 52,800	Q2-2023	Q3-2023
3	1	S	Audubon MS	Crenshaw Arts/Tech Charter High (CATCH)	R	1	10	2	0	0	0	2	11	\$ 74,100	Q2-2023	Q3-2023
4	1	S	Budlong ES	Crete Academy	G	1	10	1	0	5	1	0	18	\$ 333,300	Q2-2023	Q3-2023
5	1	S	Harte Preparatory MS	Ednovate - South LA College Prep	N	0	0	0	1	23	3	0	27	\$ 1,331,600	Q2-2023	Q3-2023
6	1	S	King ES	New Heights Charter School	G	1	12	2	0	2	0	0	17	\$ 137,100	Q2-2023	Q3-2023
7	1	S	Manual Arts HS	Global Education Academy	N	0	0	0	1	7	2	0	10	\$ 206,500	Q2-2023	Q3-2023
8	1	S	Obama Global Preparation Academy	Russell Westbrook, Why Not? MS	R	1	9	2	0	0	0	3	9	\$ 95,400	Q2-2023	Q3-2023
9	1	S	Washington Preparatory HS	Stella High Charter Academy	N	0	0	0	1	29	3	0	33	\$ 1,603,400	Q2-2023	Q3-2023
10	1	W	6th Ave. ES	Lashon Academy City	G	1	3	1	0	3	1	0	9	\$ 227,700	Q2-2023	Q3-2023
11	1	W	Baldwin Hills ES	New Los Angeles Charter Elementary School (Multi-Site w/ Cienega ES)	R	1	7	1	0	0	0	2	7	\$ 81,600	Q2-2023	Q3-2023
12	1	W	Cienega ES	New Los Angeles Charter Elementary School (Multi-Site w/ Baldwin Hills ES)	N	0	0	0	1	5	2	0	8	\$ 437,900	Q2-2023	Q3-2023
13	1	W	Wilton ES	Magnolia Science Academy 6	G	1	4	1	0	0	1	0	7	\$ 76,800	Q2-2023	Q3-2023
14	2	E	2nd St. ES	Extera Public School (Multi-Site w/ Breed ES)	U	1	11	2	0	0	0	0	14	\$ 45,000	Q2-2023	Q3-2023
15	2	E	Belmont HS	Los Angeles Academy of Arts and Enterprise	G	1	12	2	0	1	0	0	16	\$ 76,800	Q2-2023	Q3-2023
16	2	E	Breed ES	Extera Public School (Multi-Site w/ 2nd St. ES)	G	1	7	2	0	1	0	0	11	\$ 151,800	Q2-2023	Q3-2023

Attachment A
2023-24 Proposition 39 Facilities Renovations

17

	Board District	Region	District Campus	Charter School	Type (G=Growth; N=New; R=Reconfiguration; U=Upgrade)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget	Construction Start	Substantial Completion
17	2	E	Eastman ES	Extera Public School #2 (Multi-Site w/ Lorena ES)	R	1	6	2	0	0	0	1	8	\$ 112,800	Q2-2023	Q3-2023
18	2	E	Liechty MS	Rise Kohyang Middle School	N	0	0	0	1	16	2	0	19	\$ 636,200	Q2-2023	Q3-2023
19	2	E	Lorena ES	Extera Public School #2 (Multi-Site w/ Eastman ES)	R	1	6	2	0	0	0	2	7	\$ 149,100	Q2-2023	Q3-2023
20	2	E	Stevenson College & Career Prep	Collegiate Charter HS of Los Angeles	R	1	9	2	0	0	0	1	11	\$ 72,800	Q2-2023	Q3-2023
21	2	E	Virgil MS	Citizens of the World - Silver Lake	U	1	7	2	0	0	0	0	10	\$ 20,000	Q2-2023	Q3-2023
22	3	N	Armstrong MS (Charter)	High Tech Los Angeles Middle School (Multi-Site w/ Van Nuys MS)	N	0	0	0	1	6	2	0	9	\$ 516,200	Q2-2023	Q3-2023
23	3	N	Columbus MS	Ingenium Charter School	R	1	16	2	0	0	0	0	19	\$ 84,000	Q2-2023	Q3-2023
24	3	N	Van Nuys MS	High Tech Los Angeles Middle School (Multi-Site w/ Armstrong MS)	R	1	8	1	0	0	0	4	6	\$ 134,200	Q2-2023	Q3-2023
25	4	N	Sutter MS	Ingenium Charter Middle School	R	1	7	2	0	0	0	1	9	\$ 67,800	Q2-2023	Q3-2023
26	4	W	Grand View ES	Citizens of the World - Mar Vista (Multi-Site w/ Webster MS)	N	0	0	0	1	6	2	0	9	\$ 471,200	Q2-2023	Q3-2023
27	4	W	Marina Del Rey MS	Goethe International Charter School	G	1	15	2	0	2	0	0	20	\$ 122,100	Q2-2023	Q3-2023
28	4	W	Paseo del Rey ES	WISH Community School (Multi-Site w/ Westchester Enriched Sciences Magnets and Wright Engineering and Design Magnet)	N	0	0	0	1	6	2	0	9	\$ 471,200	Q2-2023	Q3-2023

Attachment A
2023-24 Proposition 39 Facilities Renovations

18

	Board District	Region	District Campus	Charter School	Type (G=Growth; N=New; R=Reconfiguration; U=Upgrade)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget	Construction Start	Substantial Completion
29	4	W	Stoner ES	ICEF Vista Elementary Charter Academy	U	1	6	2	0	0	0	0	9	\$ 20,000	Q2-2023	Q3-2023
30	4	W	Webster MS	Citizens of the World - Mar Vista (Multi-Site w/ Grand View ES)	G	1	5	2	0	2	0	0	10	\$ 137,100	Q2-2023	Q3-2023
	4	W	Webster MS	Magnolia Science Academy 4	U	1	4	2	0	0	0	0	7	\$ 15,000	Q2-2023	Q3-2023
31	4	W	Westchester Enriched Sciences Magnets	WISH Academy High School	G	1	10	3	0	3	0	0	17	\$ 167,400	Q2-2023	Q3-2023
	4	W	Westchester Enriched Sciences Magnets	WISH Community School (Multi-Site w/ Wright Engineering and Design Magnet and Paseo del Rey ES)	R	1	16	1	0	0	0	3	15	\$ 147,900	Q2-2023	Q3-2023
32	4	W	Wright Engineering and Design Magnet	WISH Community School (Multi-Site w/ Westchester Enriched Sciences Magnets and Paseo del Rey ES)	R	1	22	2	0	0	0	1	24	\$ 52,800	Q2-2023	Q3-2023
33	5	E	Clinton MS	Animo Jackie Robinson Charter High School	U	1	21	4	0	0	0	0	26	\$ 20,000	Q2-2023	Q3-2023
34	5	E	Jones ES	Synergy Charter Academy	G	1	13	2	0	0	0	0	16	\$ 31,500	Q2-2023	Q3-2023
35	5	E	Pacific ES	KIPP Pueblo Unido	G	1	9	2	0	0	1	0	13	\$ 101,800	Q2-2023	Q3-2023
36	5	E	Trinity ES	Gabriella Charter School 2 (Multi-Site w/ West Vernon ES)	R	1	16	1	0	0	0	6	12	\$ 186,800	Q2-2023	Q3-2023
37	5	E	West Vernon ES	Gabriella Charter School 2 (Multi-Site w/ Trinity ES)	N	0	0	0	1	10	2	0	13	\$ 745,400	Q2-2023	Q3-2023
38	5	W	Berendo MS	Rise Kohyang High School (Multi-Site w/ West Adams Prep HS)	N	0	0	0	1	6	2	0	9	\$ 569,200	Q2-2023	Q3-2023

Attachment A
2023-24 Proposition 39 Facilities Renovations

19

	Board District	Region	District Campus	Charter School	Type (G=Growth; N=New; R=Reconfiguration; U=Upgrade)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget	Construction Start	Substantial Completion
39	5	W	Bernstein HS	Apex Academy	R	1	12	3	0	0	0	1	15	\$ 52,800	Q2-2023	Q3-2023
40	5	W	Fletcher ES	ISANA Octavia Charter School (Multi-Site w/ Irving MS)	R	1	9	1	0	0	0	0	11	\$ 54,000	Q2-2023	Q3-2023
41	5	W	Hobart ES	Vista Horizon Global Academy	G	1	5	1	0	3	1	0	11	\$ 227,700	Q2-2023	Q3-2023
42	5	W	Hoover ES	Larchmont Charter School (Multi-Site w/ Selma ES)	N	0	0	0	1	12	4	0	17	\$ 1,018,600	Q2-2023	Q3-2023
43	5	W	Irving MS	ISANA Octavia Charter School (Multi-Site w/ Fletcher ES)	R	1	12	1	0	0	0	1	13	\$ 70,300	Q2-2023	Q3-2023
44	5	W	Le Conte MS	Citizens of the World - Hollywood	U	1	20	4	0	0	0	0	25	\$ 15,000	Q2-2023	Q3-2023
45	5	W	Selma ES	Larchmont Charter School (Multi-Site w/ Hoover ES)	R	3	19	3	1	0	0	3	23	\$ 153,700	Q2-2023	Q3-2023
46	5	W	West Adams Preparatory HS	Rise Kohyang High School (Multi-Site w/ Berendo MS)	N	0	0	0	1	17	2	0	20	\$ 1,005,500	Q2-2023	Q3-2023
47	6	N	Erwin ES	Ararat Charter School (Multi-Site w/ Kindergarten Learning Academy)	U	1	9	1	0	0	0	0	11	\$ 25,000	Q2-2023	Q3-2023
48	6	N	Fair ES	New Horizons Charter Academy	G	1	7	2	0	4	0	0	14	\$ 257,700	Q2-2023	Q3-2023
49	6	N	Fulton College Preparatory School	Lashon Academy (Multi-Site w/ Valerio ES)	R	1	27	2	0	0	0	2	28	\$ 84,100	Q2-2023	Q3-2023
50	6	N	Glenwood ES	ISANA Palmati Charter School (Multi-Site w/ Romer MS)	G	1	3	1	0	3	1	0	9	\$ 299,700	Q2-2023	Q3-2023
51	6	N	Maclay MS	Bert Corona Charter High	G	1	7	3	0	2	0	0	13	\$ 142,100	Q2-2023	Q3-2023
52	6	N	Panorama HS	Girls Athletic Leadership School	G	1	7	1	0	0	1	0	10	\$ 76,800	Q2-2023	Q3-2023
53	6	N	Romer MS	ISANA Palmati Charter School (Multi-Site w/ Glenwood ES)	R	1	11	1	0	0	0	0	13	\$ 39,000	Q2-2023	Q3-2023

2023-24 Proposition 39 Facilities Renovations

	Board District	Region	District Campus	Charter School	Type (G=Growth; N=New; R=Reconfiguration; U=Upgrade)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget	Construction Start	Substantial Completion
54	6	N	Sepulveda MS	North Valley Military Institute (Multi-Site w/ Valley Oaks Center for Enriched Studies and Mount Gleason MS)	N	0	0	0	1	4	6	0	11	\$ 641,800	Q2-2023	Q3-2023
55	6	N	Valerio ES	Lashon Academy (Multi-Site w/ Fulton College Prep School)	N	0	0	0	1	5	2	0	8	\$ 470,900	Q2-2023	Q3-2023
56	6	N	Valley Oaks Center for Enriched Studies	North Valley Military Institute (Multi-Site w/ Mount Gleason MS and Sepulveda MS)	G	1	21	5	0	0	2	0	29	\$ 165,100	Q2-2023	Q3-2023
57	7	S	Curtiss MS	Magnolia Science Academy 3	U	1	11	3	0	0	0	0	15	\$ 26,500	Q2-2023	Q3-2023
58	7	S	Dymally HS	Watts Learning Center Charter Middle School	G	1	18	2	0	1	0	0	22	\$ 76,800	Q2-2023	Q3-2023
59	7	S	Gardena HS	New Millennium Secondary School	U	1	6	2	0	0	0	0	9	\$ 51,500	Q2-2023	Q3-2023
60	7	S	Peary MS	KIPP LEA 17 (KIPP Generations Academy)	G	1	6	2	0	2	0	0	11	\$ 130,100	Q2-2023	Q3-2023
						50	521	95	15	188	46	36	879	\$ 15,276,000		

Notes

- Operators are entitled to occupy, but specific occupants may change based on May 1st responses.
- There are 62 projects planned at 60 District campuses

2023-24 Proposition 39 Facilities Renovations "No Change" Projects

	Board District	Region	District Campus	Charter School	Type (NC=No Change)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	Project Number	Amended Project Name
1	3	N	Kindergarten Learning Academy	Ararat Charter School (Multi-Site w/ Erwin ES)	NC	1	6	1	0	0	0	10370596	Kindergarten Learning Academy - 2019-24 Prop 39
2	6	N	Mount Gleason MS	North Valley Military Institute (Multi-Site w/ Valley Oaks Center for Enriched Studies and Sepulveda MS)	NC	1	6	4	0	0	0	10372504	Mount Gleason MS - 2022-24 Prop 39
3	6	N	Sun Valley Magnet E/T	ISANA Cardinal Charter School	NC	1	12	2	0	0	0	10372516	Sun Valley Magnet: Engineering, Arts & Technology - 2022-24 Prop 39
						3	24	7	0	0	0		

2023-24 Proposition 39 Facilities Renovations "Vacating" Projects

	Board District	Region	District Campus	Charter School	Type (V=Vacating)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	FY23 Unspent Budget Balance	Commitments	Additional Budget Needed or Returned to Reconfigure Campus	Project Budget	Project Number	Project Name
1	1	S	Menlo ES	Global Education Academy	V	1	6	2	0	0	0	9	0	\$182,374	\$65,926	-\$4,174	\$244,126	10372503	Menlo ES - 2022-23 Prop 39
2	1	W	Arlington Heights ES	Global Education Academy 2	V	1	4	2	0	0	0	7	0	\$38,623	\$137	\$106,977	\$145,737	10372482	Arlington Heights ES - 2022-23 Prop 39
3	2	E	Solis Learning Academy	Ednovate - Esperanza College Prep	V	1	7	2	0	0	0	10	0	-\$758	\$20,773	\$195,258	\$215,273	10371337	Solis Learning Academy - 2020-23 Prop 39
4	5	E	Holmes ES	KIPP Pueblo Unido	V	1	10	2	0	0	0	13	0	\$599,847	\$66,553	-\$356,447	\$309,953	10372498	Holmes ES - 2022-23 Prop 39
						4	27	8	0	0	0	39	0	\$820,086	\$153,389	-\$58,386	\$915,089		

LOS ANGELES UNIFIED SCHOOL DISTRICT**SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE**

Margaret Fuentes, Chair
LAUSD Student Parent
D. Michael Hamner, FAIA, Vice-Chair
American Institute of Architects
Jennifer McDowell, Secretary
L.A. City Mayor's Office
Scott Pansky, Executive Committee
L.A. Area Chamber of Commerce

Neelura Bell
CA Charter School Association
Robert Campbell
L.A. Co. Auditor-Controller's Office
Jeffrey Fischbach
CA Tax Reform Assn.
Chris Hannan
L.A. Co. Federation of Labor AFL-CIO
Hyepin Im
L.A. City Controller's Office
Brian Mello
Assoc. General Contractors of CA
Dr. Clarence Montecarlo
Tenth District PTSA
William O. Ross IV
31st District PTSA

Samantha Rowles
LAUSD Student Parent
Araceli Sandoval-Gonzalez
Early Education Coalition
Dolores Sobalvarro
AARP
Celia Ayala (Alternate)
Early Education Coalition
Chad Boggio (Alternate)
L.A. Co. Federation of Labor AFL-CIO
Peggy Robertson (Alternate)
Assoc. General Contractors of CA
Connie Yee (Alternate)
L.A. Co. Auditor-Controller's Office

Joseph P. Buchman – Legal Counsel
Burke, Williams & Sorensen, LLP
Lori Raineri and Keith Weaver – Oversight Consultants
Government Financial Strategies Joint Powers Authority

Timothy Popejoy
Bond Oversight Administrator
Perla Zitle
Bond Oversight Coordinator

RESOLUTION 2023-10**BOARD REPORT 247-22/23**

**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE 2023-2024
EDUCATION CODE SECTION 47614 (PROPOSITION 39) FACILITIES RENOVATION
EFFORT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION
PLAN TO
INCORPORATE THEREIN**

WHEREAS, District Staff proposes that the Board of Education (Board) define and approve 2023-2024 Education Code Section 47614 (Proposition 39) facilities renovations at up to 67 school sites, as listed on Attachments A, B, and C, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein for a combined budget of \$15,217,614, and authorize the Chief Procurement Officer and/or the Chief Facilities Executive, and/or their designee(s), to execute all instruments necessary to implement the Projects; and

WHEREAS, District Staff has concluded that each of the charter schools identified in attached Board Report 247-22/23 submitted a legally sufficient facilities request to the District and may locate on District school sites for the 2023-2024 school year pursuant to Proposition 39; and

WHEREAS, Bond Program funds earmarked for charter school facilities projects will be available to immediately execute renovations at multiple District school sites in order to satisfy the District's responsibilities under Education Code 47614 and related regulations; and

WHEREAS, The facilities improvements will increase the likelihood that the District school and charter school will successfully co-locate on a single school site with minimal interference and disruption to their respective educational programs; and

RESOLUTION 2023-10**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE 2023-2024 EDUCATION CODE SECTION 47614 (PROPOSITION 39) FACILITIES RENOVATION EFFORT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, The 2023-2024 Proposition 39 Facilities Renovation Effort includes various facilities renovations and reconfigurations, and technology, furniture and equipment, and communications / safety systems purchases and upgrades; and

WHEREAS, The space allocated to each charter school by the District must be furnished, equipped and available for occupancy by the charter school for a period of at least 10 working days prior to the first day of instruction of the charter school; and

WHEREAS, Funding for the 67 2023-2024 Education Code Section 47614 (Proposition 39) facilities renovations will come from Bond Program funds earmarked for charter school facilities projects; and

WHEREAS, District Staff has concluded that the proposed Facilities SEP amendment will facilitate Los Angeles Unified's ability to successfully implement the Facilities SEP

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Citizens' Bond Oversight Committee recommends that the Board of Education define and approve the 2023-2024 Education Code Section 47614 (Proposition 39) facilities renovations at up to 67 school sites as listed on Attachments A, B, and C, with a combined budget of \$15,217,614, and amend the Facilities SEP to incorporate therein, as described in Board Report 247-22/23, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the Oversight Committee's website.
3. The District is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the Oversight Committee and the District

ADOPTED on April 27, 2023, by the following vote:

AYES: 11

ABSTENTIONS: 1

NAYS: 0

ABSENCES: 3

/Margaret Fuentes/

Margaret Fuentes
Chair

/Michael Hamner/

D. Michael Hamner
Vice-Chair